

CLECK E-MART

Website Terms & Conditions

and Customer Operations Manual

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Prepared For	Cleck E-Mart
Jurisdiction	Nepal
Classification	Public – Customer Facing

NOTE *This document is a foundational framework for informational purposes and does not constitute formal legal advice. Website regulations vary based on geographical jurisdiction and industry type. A qualified legal professional should review your finalised document before deployment.*

PART 1

Master Terms & Conditions

1. Definitions

The following terms are used throughout this document. Understanding these definitions is essential for comprehending the rights and obligations set out herein.

Term	Meaning
"Site"	"https://cleckemart.com" and all associated sub-domains, applications, and services.
"Company"	Cleck E-Mart, its officers, employees, agents, and authorised representatives.
"User / You"	Any individual or entity accessing or using the Site in any capacity.
"Content"	All text, graphics, images, audio, video, data, and software published on or via the Site.
"Services"	All products, features, functionalities, and offerings made available through the Site.
"Agreement"	These Terms & Conditions, together with the Privacy Policy and Refund Policy.

2. Acceptance of Terms

By accessing, browsing, or using the Site and any Services offered by Cleck E-Mart, you expressly agree to be legally bound by this Agreement. These Terms constitute a legally enforceable contract between you and Cleck E-Mart.

If you do not agree with any provision of this Agreement, you must immediately cease all use of the Site and its Services. Continued use following any published amendment to these Terms constitutes your binding acceptance of the revised Agreement.

3. Eligibility & Account Registration

- Minimum Age:** You must be at least 18 years of age to create an account or enter into a binding contract through the Site. Users between the ages of 13–17 may only access the Site under the supervision and with the consent of a parent or legal guardian.
- Account Accuracy:** You agree to provide true, accurate, current, and complete information during registration and to keep such information updated at all times.

- **Credential Security:** You are solely responsible for maintaining the strict confidentiality of your login credentials. You must not share your username or password with any third party.
- **Account Responsibility:** You accept full responsibility for all activities, transactions, and communications conducted under your account. In the event of suspected unauthorised access or a security breach, you must notify Cleck E-Mart immediately at support@cleckemart.com.
- **Single Account Policy:** Each user is permitted to maintain only one active account. The Company reserves the right to merge or terminate duplicate accounts at its sole discretion.

4. Intellectual Property Rights

All Content on the Site — including but not limited to text, code, software, graphics, logos, interface designs, audio, and video — is the exclusive intellectual property of Cleck E-Mart or its duly licensed content providers. Such Content is protected under applicable Nepalese law and international intellectual property treaties including copyright, trademark, and design protection statutes.

- **Limited Licence:** Cleck E-Mart grants you a limited, personal, non-exclusive, non-transferable, and revocable licence to access and use the Site strictly for lawful personal, non-commercial purposes.
- **Prohibited Actions:** You are expressly prohibited from reproducing, copying, modifying, distributing, transmitting, displaying, performing, scraping, reverse-engineering, decompiling, or commercially exploiting any Content or software from the Site without prior explicit written authorisation from Cleck E-Mart.
- **Trademarks:** The "Cleck E-Mart" name, logo, and all related marks are registered or unregistered trademarks of Cleck E-Mart. Unauthorised use of any Company trademark is strictly prohibited.
- **User-Generated Content:** Where the Site permits users to submit content (e.g., reviews, comments), you grant Cleck E-Mart a royalty-free, perpetual, irrevocable, worldwide licence to use, reproduce, publish, and distribute such content in connection with its Services.

5. Limitation of Liability & Disclaimer of Warranties

5.1 "As Is" Basis. The Site and all Services are provided on an "as is" and "as available" basis. Cleck E-Mart expressly disclaims all warranties of any kind, whether express, implied, or statutory, including but not limited to implied warranties of merchantability, fitness for a particular purpose, and non-infringement.

5.2 Service Availability. Cleck E-Mart does not warrant that the Site will be uninterrupted, timely, error-free, or free from malicious code. Access to certain Services may be suspended for scheduled maintenance, system upgrades, or reasons beyond our reasonable control.

5.3 Cap on Damages. To the maximum extent permitted by applicable law, the aggregate liability of Cleck E-Mart for any claim arising out of or related to the use of the Site or Services shall not exceed the greater of (i) the total amount paid by you to Cleck E-Mart in the twelve (12) months preceding the claim, or (ii) NPR 1,000.

5.4 Exclusion of Consequential Damages. Cleck E-Mart shall not be liable for any indirect, incidental, special, consequential, or punitive damages, including loss of profits, data, business opportunity, or goodwill, regardless of the cause of action or the theory of liability asserted.

6. Termination & Account Suspension

Cleck E-Mart reserves the right, in its sole and absolute discretion, to suspend, restrict, deactivate, or permanently terminate your account and access to the Site at any time, with or without notice, for any reason including but not limited to:

- Material breach of any provision of this Agreement;
- Engaging in fraudulent, abusive, or unlawful conduct;
- Actions that damage the reputation, systems, or operations of Cleck E-Mart or other users;
- Failure to settle outstanding financial obligations.

Upon termination, all licences granted to you under this Agreement shall immediately cease. Provisions of this Agreement that by their nature should survive termination shall do so.

7. Governing Law & Dispute Resolution

This Agreement shall be governed by, construed, and enforced in accordance with the laws of Nepal, without reference to its conflict-of-law principles.

Any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, shall first be attempted to be resolved through good-faith negotiation. If unresolved within thirty (30) days, the dispute shall be submitted to binding arbitration in Kathmandu, Nepal, in accordance with the prevailing rules of the Nepal Council of Arbitration.

PART 2

Acceptable Use Policy

This policy establishes the operational rules all users must observe when accessing or interacting with the Site. Violation of this policy may result in account suspension, permanent termination, and/or referral to relevant law enforcement authorities.

1. Permitted Use

Users are permitted to use the Site solely for lawful purposes and in a manner consistent with this Agreement. Specifically, users must:

- Comply with all applicable local, national, and international laws and regulations;
- Maintain accurate, current, and complete billing, shipping, and account information;
- Engage respectfully and professionally with customer support staff, public forums, and community features;
- Use the Services only for their intended and authorised purpose.

2. Prohibited Conduct

The following behaviours are strictly prohibited. Any user found engaging in prohibited conduct will face immediate account termination and may be subject to civil and/or criminal legal action:

Prohibited Activity	Description
System Interference	Introducing malware, viruses, trojans, worms, ransomware, logic bombs, or any malicious code designed to disrupt, corrupt, or alter the Site or its underlying infrastructure.
Automated Data Harvesting	Using bots, spiders, scrapers, crawlers, or any automated data-extraction tool to collect information from the Site without express written authorisation.
Identity Deception	Impersonating any person, organisation, or entity, or falsely representing an affiliation with a brand, business, or official body.
Financial Fraud	Using stolen, cloned, or unauthorised payment credentials; participating in fraudulent chargeback schemes or any form of payment manipulation.
Security Probing	Attempting to probe, scan, test, or exploit any vulnerability in the Site's systems, networks, or authentication mechanisms without explicit written authorisation.
Harassment & Abuse	Engaging in harassment, threats, hate speech, or any behaviour intended to harm, intimidate, or demean any person or group.

Prohibited Activity	Description
IP Infringement	Uploading, sharing, or distributing content that infringes upon the intellectual property rights of any third party.

PART 3

Customer User Manual

Welcome to Cleck E-Mart. This guide explains how to set up your account, make purchases, resolve common issues, and contact our support team. Please read through the relevant section for step-by-step guidance.

1. Setting Up & Securing Your Account

- **Registration:** Navigate to the Site and click "Sign Up" in the upper-right corner of the homepage. Complete all required fields and submit the registration form.
- **Email Verification:** A verification link will be sent to the email address you provided. Click the link within 24 hours to activate your account.
- **Password Requirements:** Your password must be at least 8 characters long and include a combination of uppercase letters, lowercase letters, numeric digits, and special characters (e.g., !, @, #, \$).
- **Two-Factor Authentication (2FA):** We strongly recommend enabling 2FA from your Account Settings panel for an additional layer of security.
- **Credential Confidentiality:** Never share your password with any third party. Cleck E-Mart staff will never ask for your password under any circumstances.

2. Browsing, Purchasing & Checkout

- **Product Discovery:** Use the search bar, category menus, or curated collections on the homepage to find products and services.
- **Adding to Cart:** Select your desired product, choose any relevant variants (size, colour, quantity), and click "Add to Cart". The cart icon in the navigation bar will update to reflect your selection.
- **Checkout Process:** When ready to purchase, click the cart icon and select "Proceed to Checkout". Enter or confirm your shipping address, select a payment method, review your order summary, and click "Place Order".
- **Order Confirmation:** You will receive an automated confirmation email with your order details and a unique tracking number within minutes of successful payment.
- **Order Tracking:** Log in to your account and navigate to "My Orders" to view real-time status updates for all your orders.

3. Troubleshooting Common Issues

Issue	Recommended Resolution
Page not loading / slow performance	Press Ctrl+F5 (Windows) or Cmd+Shift+R (Mac) to hard-refresh and clear cached data. Alternatively, clear your browser cache from Settings.
Checkout form not responding	Disable browser extensions (particularly ad-blockers or script-blockers) or try accessing the Site in an Incognito / Private browsing window.
Unable to log in	Click "Forgot Password" on the login screen. A secure password reset link will be sent to your registered email address.
Payment declined	Verify that your card details, billing address, and available balance are correct. Contact your bank if the issue persists, then retry the transaction.
Missing order confirmation email	Check your spam or junk mail folder. If the confirmation is not found within 30 minutes of purchase, contact our support team.

4. Contacting Customer Support

Our customer support team is available to assist you with account queries, order issues, payment concerns, and technical difficulties. Please use the channel most appropriate to your needs:

Channel	Details
Email	support@cleckemart.com
Operating Hours	Sunday – Friday, 9:00 AM to 5:00 PM (Nepal Standard Time)
Response Time	All support requests are logged and responded to within 24 business hours
Escalation	If your issue remains unresolved after 48 hours, reply to the original ticket with the subject line: ESCALATION – [Your Ticket Number]

PART 4

Internal Implementation Manual

This section provides guidance for the Cleck E-Mart internal team on the proper deployment, maintenance, and governance of this document to ensure its legal effectiveness and operational integrity.

1. Legal Deployment Strategy

- **Separate Policy Documents:** Maintain the Terms & Conditions, Privacy Policy, and Refund Policy as distinct, independently linked documents. Do not merge these into a single page, as this may reduce enforceability.
- **Click-Wrap Enforcement:** Implement an active click-wrap agreement mechanism. During account registration and checkout, require users to actively check an unticked checkbox confirming: "I have read and agree to the Terms & Conditions." Passive browse-wrap agreements (i.e., a footer link alone) may not be sufficient for legal enforceability.
- **Prominent Placement:** Terms & Conditions links must appear in the website footer, during all registration flows, at the checkout stage, and in order confirmation emails.
- **Cookie Consent:** If the Site uses tracking cookies, a compliant cookie consent banner must be implemented in accordance with applicable data protection regulations.

2. Document Version Control & Maintenance

- **Effective Date Display:** Always display the "Effective Date" or "Last Updated" date prominently at the top of the published Terms page.
- **Version Registry:** Maintain an internal version registry logging each revision date, the nature of changes made, and the team member responsible for the update.
- **Material Change Notification:** Whenever a material change is made to operational rules, payment structures, or data handling practices, proactively notify all registered users via email and/or a mandatory in-platform notification modal upon their next login. Continued use of the platform following notification constitutes legal acceptance.
- **Annual Legal Review:** It is recommended that a qualified legal professional conducts a formal review of this document at least once every twelve (12) months or following any significant change in applicable law or business operations.
- **Record Keeping:** Retain a record of each version of the Terms & Conditions for a minimum of seven (7) years for evidentiary and compliance purposes.

3. Implementation Checklist

#	Action Item	Status
1	Replace all bracketed placeholder text with actual business details	☐
2	Have document reviewed by a qualified legal professional	☐
3	Publish Terms & Conditions at a permanent, shareable URL	☐
4	Implement click-wrap checkbox on registration and checkout pages	☐
5	Add Terms & Conditions link to website footer and email templates	☐
6	Implement cookie consent banner (if applicable)	☐
7	Establish internal version control log	☐
8	Schedule first annual legal review	☐

NOTE This document is a foundational framework for informational purposes only. It does not constitute formal legal advice. Laws governing e-commerce and data privacy vary by jurisdiction. Cleck E-Mart should engage a qualified legal professional licensed in Nepal to review and finalise this document prior to public deployment.

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